

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----
ELIJAH GRAY,

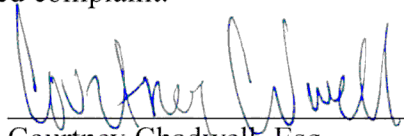
Plaintiff,

-against-

CITY OF NEW YORK, NEW YORK CITY
HEALTH AND HOSPITALS CORPORATION,
LINCOLN MEDICAL AND MENTAL HEALTH
CENTER, JACOBI MEDICAL CENTER, NEW
YORK CITY POLICE DEPARTMENT,
DETECTIVE CHARLES AWANI, Shield #3219,
and "JOHN DOES 1-15," PERSONS EMPLOYED
BY THE CITY OF NEW YORK,Defendants.

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the within verified complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on Plaintiff's attorney within twenty (20) days after the service of summons, exclusive of the day of service or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the notice set forth below and in the within verified complaint.

Dated: New York, New York
January 28, 2020

 Courtney Chadwell, Esq.
 LEBEDIN KOFMAN, LLP
 Attorneys for Plaintiff
 ELIJAH GRAY
 26 Broadway, 27th Floor
 New York, New York 10004
 (212) 500-3273
 File No.: FA-7244-LK

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SUMMONS

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Index No.: _____

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Date Filed: _____

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Plaintiff designates

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Bronx County
as the place of trial

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The basis of venue is based on
CPLR § 504(3)

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Defendants' Addresses:

CITY OF NEW YORK, Claim No.: 2018PI036452, 100 Church Street, New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT, One Police Plaza, New York, NY 10038

DETECTIVE CHARLES AWANI, Shield #3219, 46th Precinct, 2120 Ryer Avenue, Bronx, New York 10457

NEW YORK CITY HEALTH AND HOSPITALS CORPORATION, Claim No. 50-565, 125 Worth Street, New York, New York 10013

JACOBI MEDICAL CENTER, 1400 Pelham Parkway South, Bronx, New York 10461

LINCOLN MEDICAL AND MENTAL HEALTH CENTER, 234 East 149th Street, Bronx, New York 10451

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----
ELIJAH GRAY,

Plaintiff,

-against-

CITY OF NEW YORK, NEW YORK CITY
HEALTH AND HOSPITALS CORPORATION,
LINCOLN MEDICAL AND MENTAL HEALTH
CENTER, JACOBI MEDICAL CENTER, NEW
YORK CITY POLICE DEPARTMENT,
DETECTIVE CHARLES AWANI, Shield #3219,
and "JOHN DOES 1-5," PERSONS EMPLOYED
BY THE CITY OF NEW YORK,Defendants.

X

VERIFIED COMPLAINT

Index No.:

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ELIJAH GRAY (hereinafter the "Plaintiff"), by his attorneys, LEBEDIN KOFMAN, LLP, complaining against Defendants CITY OF NEW YORK, NEW YORK CITY HEALTH AND HOSPITALS CORPORATION, LINCOLN MEDICAL AND MENTAL HEALTH CENTER, JACOBI MEDICAL CENTER, NEW YORK CITY POLICE DEPARTMENT, DETECTIVE CHARLES AWANI, Shield #3219, and "JOHN DOES 1-15," PERSONS EMPLOYED BY THE CITY OF NEW YORK, (hereinafter collectively "Defendants"), upon information and belief, alleges as follows:

INTRODUCTION

1. Plaintiff brings this action for compensatory damages and punitive damages under the common law of the State of New York, and for compensatory damages, punitive damages, and attorney's fees pursuant to 42 U.S.C. §1983 and 42 U.S.C. §1988 for violation of his rights under the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments of the United States Constitution.

PARTIES

2. At all relevant times, Plaintiff was and is a resident of Bronx County, City and State of New York.

3. At all relevant times, Defendant CITY OF NEW YORK (hereinafter “City”) was and is a municipal corporation incorporated and existing under the laws of the State of New York.

4. At all relevant times, Defendant NEW YORK CITY HEALTH AND HOSPITALS CORPORATION (hereinafter, “NYCHHC”) was and is a public benefit corporation duly organized and existing under the laws of the State of New York.

5. At all relevant times, Defendant LINCOLN MEDICAL AND MENTAL HEALTH CENTER was and still is a domestic public benefit corporation or subsidiary of such entity duly organized and existing under the laws of the State of New York, and said defendant maintains a duly accredited hospital and medical facility located at 234 East 149th Street in Bronx, New York 10451.

6. At all relevant times, Defendant JACOBI MEDICAL CENTER was and still is a domestic public benefit corporation or subsidiary of such entity duly organized and existing under the laws of the State of New York, and said defendant maintains a duly accredited hospital and medical facility located at 1400 Pelham Parkway South in Bronx, New York 10461.

7. At all relevant times, Defendant NYCHHC managed, directed, supervised, and controlled its hospital facility, Defendant LINCOLN MEDICAL AND MENTAL HEALTH CENTER (hereinafter, “Lincoln”), located at 234 East 149th Street in Bronx, New York 10451, and the treatment rendered at said hospital by professional staff.

8. At all relevant times, Defendant NYCHHC managed, directed, supervised, and controlled its hospital facility, Defendant JACOBI MEDICAL CENTER (hereinafter, “Jacobi”),

located at 1400 Pelham Parkway South in Bronx, New York 10461, and the treatment rendered at said facility by professional staff.

9. At all relevant times, Defendant NEW YORK CITY POLICE DEPARTMENT (hereinafter “NYPD”) was and is an agency of Defendant City.

10. At all relevant times, Defendant City owned, operated, controlled and managed the NYPD.

11. At all relevant times, Defendant DETECTIVE CHARLES AWANI, Shield #3219, (hereinafter “Detective Awani”) was an officer, agent, and/or employee of Defendant City.

12. At all relevant times, the names of Defendants “JOHN DOES 1-15” (hereinafter “Officers”) are fictitious and are intended to be individuals engaged in law enforcement who were involved in the arrest and detention of Plaintiff and violated Plaintiff’s rights, whose names are presently unknown to Plaintiff.

13. At all relevant times, Defendant Officers were officers, agents and/or employees of Defendant City.

14. At all relevant times, Defendants Detective Awani and Officers were each individually hired, trained, supervised and retained by Defendant City, including its agencies, and all supervisory officers, agents, employees, and/or contractors of Defendant City.

15. At all relevant times, Defendants were involved in violating Plaintiff’s rights and in so doing acted or failed to act, as alleged herein, under color of the statutes, ordinances, customs, policies, procedures, and/or rules of the State and City of New York, and within the scope of their employment.

16. Defendants Detective Awani and Officers are sued herein in both their individual and official capacities.

FACTS

17. The facts alleged in this complaint are based upon the personal observations of Plaintiff regarding events that took place in his presence, and upon information and belief, the sources thereof are documents prepared in connection with the arrest of Plaintiff and public documents and information relating thereto which are presently available to Plaintiff. The aforesaid documentary evidence is presently incomplete, as it does not include numerous documents and exhibits. Therefore, the complaint has been prepared without the benefit of full discovery.

Timeliness and Notice of Claim

18. Plaintiff filed a Notice of Claim (*see* Exhibit “A” annexed hereto) with the City in accordance with General Municipal Law Section 50-e and 50-I on or about December 31, 2018. On or about August 27, 2019, Plaintiff filed a Notice of Claim with NYCHHC (*see* Exhibit “B” annexed hereto). These Notices of Claim set forth the name and address of Plaintiff, his attorneys, the nature of the claim, the time and place where it arose, and the items and amounts of damages claimed.

19. At least thirty (30) days has passed since service of either Notice of Claim and payment of the claims has been either refused or neglected.

20. General Municipal Law Section 50-h hearings were held on or about May 22, 2019 and December 20, 2019.

21. This action is being commenced within one year and ninety days of the dates of which all claims accrued.

22. Plaintiff has complied with all conditions precedent to maintain this action.

23. All state causes of action pleaded herein fall within one or more of the exceptions set forth in New York Civil Practice Law & Rules Section 1602 with respect to joint and several liability.

Incident of October 5, 2018, and Subsequent Hospitalization and Detention

24. On or about October 5, 2018, at or near Popham Avenue and University Avenue, in the County of Bronx, City and State of New York, Plaintiff was the victim of a shooting. Plaintiff was shot twice and left paralyzed from the waist down as a result. He was taken by ambulance to Defendant Lincoln Medical and Mental Health Center, where Plaintiff was arrested by Defendants City, NYPD, Detective Awani, and Officers and surgery was performed.

25. When Plaintiff awoke from surgery on October 6, 2018, he was handcuffed to his hospital bed by his right wrist and right ankle. A uniformed Police Officer was stationed by his bed at all times while Plaintiff was handcuffed at Defendant Lincoln.

26. Defendants City, NYPD, Detective Awani, and Officers unlawfully prevented Plaintiff from making any telephone calls and having any visitors for two weeks following the shooting. Even Plaintiff's own mother was prevented from visiting her son during this time.

27. Plaintiff was repeatedly told by Defendants City, NYPD, Detective Awani, and Officers that he would receive a bedside arraignment. However, Defendants City, NYPD, Detective Awani, and Officers intentionally and unnecessarily delayed Plaintiff's arraignment, which did not occur until November 7, 2018.

28. Plaintiff remained handcuffed to his bed, even though he was paralyzed from the waist down, for a total of thirty-four (34) consecutive days. During this time, Plaintiff was virtually immobilized and unlawfully prevented from receiving necessary and proper medical care as a result of all Defendants' wrongful conduct.

29. During the time he remained at Defendant Lincoln, Defendants NYCHHC and Lincoln, and their employees, negligently or intentionally failed to provide competent, skilled or adequate medical care, causing Plaintiff to suffer severe physical and psychological injuries and causing unnecessary delays to his recovery.

30. During the time he remained at Defendant Lincoln, Defendants NYCHHC and Lincoln, and their employees, negligently or intentionally failed to properly diagnose Plaintiff, causing Plaintiff to suffer severe physical and psychological injuries and causing unnecessary delays to his recovery.

31. Plaintiff was subsequently transferred to Defendant Jacobi, where he continued to receive substandard, incompetent, inadequate, and unskilled medical care by staff at said defendant, causing Plaintiff to suffer severe physical and psychological injuries and causing unnecessary delays to his recovery.

32. During the time he remained at Defendant Jacobi, Defendants NYCHHC and Jacobi, and their employees, negligently or intentionally failed to properly diagnose Plaintiff, causing Plaintiff to suffer severe physical and psychological injuries and causing unnecessary delays to his recovery.

33. Defendants City, NYPD, Detective Awani, and Officers' unlawful and deliberately indifferent conduct in purposefully failing to promptly arraign Plaintiff and/or ensure that he received proper medical care also caused Plaintiff to suffer severe physical and psychological injuries and caused unnecessary delays to his recovery.

34. Plaintiff developed bedsores, sustained serious injuries to his wrist and ankle, and was prevented from undergoing physical therapy as a direct result of Defendants City, NYPD, Detective Awani, and Officers' wrongful and deliberately indifferent conduct.

35. Plaintiff developed bedsores, sustained serious injuries to his wrist and ankle, and was prevented from undergoing physical therapy as a direct result of the Defendants NYCHHC, Jacobi, and Lincoln, and their employees' wrongful and deliberately indifferent conduct.

36. Defendants NYCHHC, Jacobi, and Lincoln, and their employees, negligently or intentionally failed to prevent or properly treat Plaintiff's bedsores and other injuries, causing Plaintiff to suffer severe physical and psychological injuries and causing unnecessary delays to his recovery.

37. At all times relevant to this action, all Defendants acted intentionally, willfully, negligently, and with reckless disregard for and deliberate indifference to the clearly established rights of Plaintiff.

38. The acts of all Defendants prior to and during the course of Plaintiff's unlawful imprisonment were the direct result of the failure of Defendants City, NYPD, NYCHHC, Lincoln, and/or Jacobi to properly hire, train, supervise, monitor, and discipline their officers, agents, employees, and/or contractors.

39. The acts of all Defendants prior to and during the course of the unlawful imprisonment of Plaintiff were taken pursuant to policies, practices, and/or customs developed, implemented, enforced, encouraged, and tolerated by Defendants City and/or NYCHHC.

40. As a result of the aforesaid acts or omissions of all Defendants, Plaintiff sustained serious personal, physical, and emotional injuries and losses including pain and suffering, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, trauma, shock, fear, humiliation, embarrassment, shame, indignity, damage to his reputation, professional and economic losses, and financial costs and expenses.

41. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts that may otherwise have jurisdiction.

CAUSES OF ACTION

STATE CLAIMS

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS CITY, NYPD, DETECTIVE AWANI, AND OFFICERS FOR FALSE ARREST AND IMPRISONMENT

42. The allegations set forth in paragraphs “1” through “41” inclusive are incorporated herein as if fully set forth.

43. Defendants City, NYPD, Detective Awani and Officers intended to cause the wrongful and unlawful arrest and detention of Plaintiff, and wrongfully and unlawfully imprisoned Plaintiff.

44. Defendants intended to restrain or to cause Plaintiff to be restrained and to be deprived of his liberty, and caused him to be taken into police custody.

45. Defendants knew or should have known that the conduct engaged in would result in the unlawful arrest and imprisonment of Plaintiff.

46. Plaintiff was aware of such confinement by Defendants and did not consent to said confinement.

47. The aforementioned confinement was not privileged in any way and was without legal justification.

48. Defendants purposefully and unreasonably delayed Plaintiff’s arraignment without justification, causing Plaintiff to be handcuffed and confined to his hospital bed for approximately thirty-four (34) days before he was finally arraigned.

49. Defendants City and NYPD are responsible and liable for the acts of defendants Detective Awani and Officers performed within the scope of their employment under the doctrine of *respondeat superior*.

50. As a direct and proximate result of the Defendants' acts and/or omissions, Plaintiff was caused to suffer great pain, mental anguish, psychological and emotional suffering, humiliation, fear, physical injuries, and pecuniary damages in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

51. The conduct of the Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it evinces a conscious disregard to the rights of others and renders Defendants liable to Plaintiff for punitive damages.

AS AND FOR A SECOND CAUSE OF ACTION
AGAINST ALL DEFENDANTS FOR
NEGLIGENT/INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

52. The allegations set forth in paragraphs "1" through "51" inclusive are incorporated herein as if fully set forth.

53. All Defendants engaged in extreme and outrageous conduct throughout the course of the arrest, detention, and hospitalization of Plaintiff.

54. All Defendants caused Plaintiff to fear for his safety during the course of the aforesaid extreme and outrageous conduct.

55. All Defendants knew or should have known that the extreme and outrageous conduct in which they engaged would result in injury to Plaintiff.

56. Said extreme and outrageous conduct exceeded all bounds usually tolerated by a decent society.

57. The aforesaid extreme and outrageous conduct was performed with the intent to cause, or in disregard of a substantial probability of causing, severe emotional distress to Plaintiff.

58. Such extreme and outrageous conduct caused Plaintiff to suffer severe and debilitating mental anguish and emotional distress, which had a disabling effect on Plaintiff.

59. Defendant City is responsible for and liable for the acts of Defendants Detective Awani and Officers performed within the scope of their employment through the doctrine of *respondeat superior*.

60. Defendants NYCHHC, Lincoln, and Jacobi are responsible for and liable for the acts of their employees performed within the scope of their employment through the doctrine of *respondeat superior*.

61. As a direct and proximate cause of all Defendants' intentional and/or negligent infliction of emotional distress on Plaintiff, Plaintiff was caused to suffer great pain, mental anguish, psychological and emotional suffering, humiliation, fear, physical injuries, and pecuniary damages in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

62. The conduct of all Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it evinces a conscious disregard to the rights of others and renders the Defendants liable to Plaintiff for punitive damages.

AS AND FOR A THIRD CAUSE OF ACTION
AGAINST DEFENDANTS CITY, NYPD, NYCHHC,
LINCOLN AND JACOBI FOR
NEGLIGENT HIRING, TRAINING, RETENTION AND SUPERVISION

63. The allegations set forth in paragraphs "1" through "62" inclusive are incorporated herein as if fully set forth.

64. Defendants City and NYPD failed to exercise reasonable care in hiring, training, retaining, and supervising Defendants Detective Awani and Officers, thereby breaching their duty to Plaintiff, as well as to the public, to exercise reasonable care in their hiring, training, retaining, and supervising of employees.

65. Defendants NYCHHC, Jacobi, and Lincoln failed to exercise reasonable care in hiring, training, retaining, and supervising their employees, thereby breaching its duty to Plaintiff, as well as to the public, to exercise reasonable care in their hiring, training, retaining, and supervising of employees.

66. Defendants City and NYPD knew or and should have known of the dangerous propensity of Defendants Detective Awani and Officers to commit injurious acts of the type alleged herein.

67. Defendants NYCHHC, Jacobi, and Lincoln knew or and should have known of the dangerous propensity of the employees who treated Plaintiff to commit injurious acts of the type alleged herein.

68. Defendants City and NYPD were negligent in failing to properly investigate, train, and supervise their employees, more specifically Defendants Detective Awani and Officers.

69. Defendants NYCHHC, Lincoln, and Jacobi were negligent in failing to properly investigate, train, and supervise their employees, more specifically the employees who treated Plaintiff.

70. As a direct and proximate cause of all Defendants' acts and omissions, Plaintiff was caused to suffer great pain, mental anguish, psychological and emotional suffering, humiliation, fear, physical injuries, and pecuniary damages in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

71. The conduct of all Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it evinces a conscious disregard to the rights of others and renders all Defendants liable to Plaintiff for punitive damages.

AS AND FOR A FOURTH CAUSE OF ACTION
AGAINST ALL DEFENDANTS FOR
NEGLIGENCE

72. The allegations set forth in paragraphs “1” through “71” inclusive are incorporated herein as if fully set forth.

73. All Defendants had a special duty to properly care for Plaintiff while he was immobilized and in their custody, to ensure that Plaintiff received all necessary medical care, to abide by good and accepted medical practices, to arrange for a prompt arraignment following his arrest, and to not unnecessarily delay his arraignment.

74. All Defendants’ acts and/or omissions in causing the aforesaid false arrest and imprisonment, negligently hiring, retaining, training, and supervising of its employees, officers, agents, and/or contractors, and their infliction of emotional distress were in breach of said duty of due care owed to Plaintiff.

75. Defendants City, NYPD, Detective Awani and Officers acted negligently and in reckless disregard for his rights in arresting and confining Plaintiff for an unreasonably long period of time.

76. Defendants City, NYPD, Detective Awani and Officers further breached their duty of care by failing to have Plaintiff arraigned in a timely manner and by preventing Plaintiff from receiving adequate medical care.

77. Defendants NYCHHC, Lincoln, and Jacobi acted negligently and in reckless disregard for his rights in failing to properly diagnose or provide adequate and skilled medical treatment to Plaintiff.

78. Defendant City is responsible and liable for the acts of Defendants Detective Awani and Officers done within the scope of their employment under the doctrine of *respondeat superior*.

79. Defendants NYCHHC, Lincoln, and Jacobi are responsible for and liable for the acts of employees performed within the scope of their employment through the doctrine of *respondeat superior*.

80. As a direct and proximate cause of all Defendants' negligence, Plaintiff was caused to suffer great pain, mental anguish, psychological and emotional suffering, humiliation, fear, physical injuries, and pecuniary damages in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

81. The conduct of all Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it evinces a conscious disregard to the rights of others and renders all Defendants liable to Plaintiff for punitive damages.

AS AND FOR A FIFTH CAUSE OF ACTION
AGAINST DEFENDANTS NYCHHC, LINCOLN,
AND JACOBI FOR MEDICAL MALPRACTICE

82. The allegations set forth in paragraphs "1" through "81" inclusive are incorporated herein as if fully set forth.

83. Plaintiff was admitted to Defendant Lincoln on or about October 5, 2018 and he was discharged from said defendant to Defendant Jacobi on or about November 16, 2018, where he remained until he returned home on or about December 14, 2018.

84. Plaintiff relied upon the advice and care of Defendants NYCHHC, Lincoln, and Jacobi, and their agents, servants and/or employees, and upon their knowledge, skill and representations that he would be properly cared for.

85. Plaintiff continuously submitted himself to the care of Defendants NYCHHC, Lincoln, and Jacobi, and their agents, servants and/or employees, during the above pleaded time periods.

86. During the aforementioned periods of time, Defendants NYCHHC, Lincoln, and Jacobi, and their agents, servants and/or employees, undertook to care for, diagnose, monitor, and treat Plaintiff for his presenting symptomology.

87. The care and treatment rendered by Defendants NYCHHC, Lincoln, and Jacobi, and their agents, servants and/or employees, was improper, negligent, and provided in a careless manner.

88. Defendants NYCHHC, Lincoln, and Jacobi, and their agents, servants and/or employees, failed to employ the skill, care, and diligence commonly and ordinarily possessed by, and required of, physicians, nurses, aides, and physician's assistants in the community, and they further failed to use their best judgment in the care and treatment of Plaintiff.

89. Defendants NYCHHC, Lincoln, and Jacobi, and their agents, servants and/or employees, failed to treat and care for Plaintiff in accordance with the standards of care generally accepted in the profession and community; departed from good and accepted medical and nursing practice; and neglected to use approved methods in their care and treatment of Plaintiff.

90. Defendants NYCHHC, Lincoln, and Jacobi are responsible for and liable for the acts of employees performed within the scope of their employment through the doctrine of *respondeat superior*.

91. The deviation by Defendants NYCHHC, Lincoln, and Jacobi, and their agents, servants and/or employees, from good and accepted medical practice and their negligent treatment of Plaintiff proximately caused him to suffer great pain, mental anguish, psychological and emotional suffering, humiliation, fear, physical injuries, and pecuniary damages in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

92. The aforementioned injuries were caused solely by the carelessness, indifference, and professional negligence of Defendants NYCHHC, Lincoln, and Jacobi, and their agents, servants and/or employees, without any negligence on the part of Plaintiff contributing thereto.

93. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it evinces a conscious disregard to the rights of others and renders Defendants liable to Plaintiff for punitive damages.

FEDERAL CLAIMS

AS AND FOR A SIXTH CAUSE OF ACTION AGAINST ALL DEFENDANTS FOR PURSUANT TO 42 U.S.C. §1983

94. The allegations set forth in paragraphs “1” through “93” inclusive are incorporated herein as if fully set forth.

95. Plaintiff had a clearly established constitutional right to receive adequate medical care while in government custody.

96. Plaintiff had a clearly established constitutional right to be brought before a Judge, advised of the charges against him, and arraigned in a prompt fashion without unnecessary delay.

97. Plaintiff had a clearly established right to receive visitors and communicate with his family members while in the hospital.

98. Defendants City, NYPD, Detective Awani, and Officers, unlawfully and without justification, prevented Plaintiff from visiting with or speaking to any of his family members for two weeks following his arrest.

99. Defendants City, NYPD, Detective Awani, and Officers intentionally and without justification delayed Plaintiff's arraignment for over a month following his arrest, while simultaneously refusing to remove Plaintiff's handcuffs during this same period.

100. During the time Plaintiff was in the custody of the Defendants, Defendants City, NYPD, Detective Awani, and Officers unlawfully prevented Plaintiff from receiving proper medical treatment and/or interfered with Plaintiff's medical care.

101. Upon information and belief, Defendants City, NYPD, Detective Awani, and Officers knew that their unjustified refusal to allow Plaintiff to speak to or visit with his family members after he was shot would cause Plaintiff to be in extreme psychological and emotional distress.

102. Upon information and belief, Defendants City, NYPD, Detective Awani, and Officers knew that their purposeful yet unnecessary delay of Plaintiff's arraignment would cause Plaintiff to suffer both physical and mental injuries.

103. Upon information and belief, Defendants City, NYPD, Detective Awani, and Officers knew that Plaintiff was at risk of developing bedsores due to his status as a paraplegic.

104. Upon information and belief, Defendants City, NYPD, Detective Awani, and Officers knew that being handcuffed and unable to shift position for such an extended period of time heightened Plaintiff's risk of developing bedsores.

105. Upon information and belief, Defendants City, Detective Awani, and Officers knew that being handcuffed for such an extended period of time would result in physical injury to Plaintiff's extremities.

106. By reason of said knowledge, Defendants City, NYPD, Detective Awani, and Officers knew or should have known that they had an obligation to arrange for Plaintiff's prompt arraignment.

107. By reason of said knowledge, Defendants City, NYPD, Detective Awani, and Officers knew or should have known that they had an obligation to remove Plaintiff's handcuffs so as to prevent tissue breakdown and injury, allow him to be turned and positioned, and otherwise permit him to receive adequate medical treatment.

108. By reason of said knowledge, Defendants City, NYPD, Detective Awani, and Officers knew or should have known that they had an obligation to allow Plaintiff to see his family while he was hospitalized and in custody.

109. Instead of fulfilling any of the aforementioned obligations, Defendants City, NYPD, Detective Awani, and Officers unreasonably and purposefully delayed Plaintiff's arraignment, barred Plaintiff's family from having contact with him, and caused him to receive constitutionally inadequate medical care while in Defendants' custody.

110. In doing so, Defendants City, NYPD, Detective Awani, and Officers were deliberately indifferent to Plaintiff's health, well-being, safety, and constitutional rights and were deliberately indifferent to a serious risk of harm to Plaintiff.

111. Defendant City knew or should have known that there was a serious widespread and ongoing problem with respect to facilitating prompt arraignments of hospitalized individuals in the custody of the New York Police Department and ensuring that such individuals in police

custody receive proper medical care, and that police officers (including the individual defendants) routinely delayed arraignments, interfered with familial communication without justification, and caused hospitalized arrestees to receive constitutionally inadequate medical care.

112. However, Defendant City maintained a policy of deliberate indifference to the treatment and care of hospitalized arrestees; failed to implement measures to ensure that police officers are appropriately supervised by qualified and well-trained staff; failed to promulgate or implement policies for the prompt arraignment of hospitalized arrestees; failed to develop or implement policies and procedures to ensure that all arrestees receive necessary and proper medical care; failed to promulgate or implement policies for visitation between arrestees who are hospitalized and family members; failed to promulgate or implement policies and procedures regarding use of restraints on hospitalized and/or paralyzed arrestees; failed to establish and maintain a meaningful system for responding to complaints of misconduct; authorized, tolerated and ratified the misconduct of employees and officers towards hospitalized arrestees; and failed to intervene or impose discipline when police officers violated well-established statutory and constitutional rights.

113. Defendant City knew or should have known that those failures would cause the violation of the constitutional rights of hospitalized arrestees such as Plaintiff.

114. As a result of these failures, Plaintiff was subjected to mental torment, received substandard medical care while in custody, prevented from having access to his family, and caused to be handcuffed to his hospital bed despite being paralyzed for over a month.

115. By reason of their acts and omissions, all of these Defendants, acting under color of state law, in gross disregard of Plaintiff's rights, deprived Plaintiff of his rights to adequate medical care, contact with his family, due process, and freedom from false arrest, delayed

arraignment, and unlawful imprisonment in violation of the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments to the United States Constitution.

116. As a direct and proximate result of Defendants' acts and/or omissions, Plaintiff was caused to suffer great pain, mental anguish, humiliation, fear, physical and mental injuries, confusion, and further pecuniary damages in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action. Said injuries are irreversible and permanent.

117. The conduct of Defendants set forth above and complained of herein was so egregious that it shocks the contemporary conscience and renders the individual Defendants liable to Plaintiff for punitive damages.

AS AND FOR A SEVENTH CAUSE OF ACTION
AGAINST DEFENDANT CITY FOR
FAILURE TO TRAIN PURSUANT TO 42 U.S.C. §1983

118. The allegations set forth in paragraphs "1" through "117" inclusive are incorporated herein as if fully set forth.

119. Defendant City had an obligation to provide training to its employees regarding the treatment and care of hospitalized arrestees; constitutional and statutory requirements with respect to the prompt arraignment of arrestees; how to ensure that all arrestees receive necessary and proper medical care while in custody; how and when to arrange for visitation between arrestees who are hospitalized and family members; and proper use of restraints on hospitalized and/or paralyzed arrestees.

120. Defendant City was deliberately indifferent to its obligation to provide training to employees on the subjects listed above.

121. Defendant City knew or should have known that its failure to provide said training would result in constitutional violations and endanger the health and safety of hospitalized arrestees such as Plaintiff.

122. In failing to provide adequate training, Defendant City was deliberately indifferent to the rights of citizens to not be deprived of liberty without due process of law, to be promptly arraigned without unnecessary delay, to receive adequate medical care while in government custody, and to maintain familial associations.

123. As a direct result of these failures, Plaintiff was subjected to false arrest and unlawful imprisonment, purposefully denied a prompt arraignment, denied contact with his family, and subjected to substandard medical care while in custody.

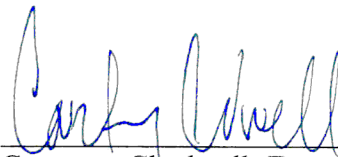
124. By reason of their acts and omissions, Defendants, acting under color of state law, in gross disregard of Plaintiff's rights, deprived Plaintiff of his rights to not be deprived of his liberty without due process, to receive adequate medical care while in custody, to maintain contact with his family, to be arraigned without unnecessary delay, and to be free from false arrest and unlawful imprisonment in violation of the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments to the United States Constitution.

125. As a direct result of Defendants' actions, Plaintiff was caused to suffer great pain, mental anguish, humiliation, fear, physical and mental injuries, confusion, and further pecuniary damages in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action. Said injuries are irreversible and permanent.

126. The conduct of Defendants set forth above and complained of herein was so egregious that it shocks the contemporary conscience and renders the individual Defendants liable to Plaintiff for punitive damages and attorneys fees.

WHEREFORE, Plaintiff demands judgment against Defendants CITY OF NEW YORK, NEW YORK CITY HEALTH AND HOSPITALS CORPORATION, LINCOLN MEDICAL AND MENTAL HEALTH CENTER, JACOBI MEDICAL CENTER, NEW YORK CITY POLICE DEPARTMENT, DETECTIVE CHARLES AWANI, Shield #3219, AND “JOHN DOES 1-15,” PERSONS EMPLOYED BY THE CITY OF NEW YORK, individually and collectively, on all causes of action, in an amount which exceeds the jurisdiction limitations of all lower courts and in an amount to be determined at the trial of this action, together with all costs and interest, and for such other relief as this Court may deem just and proper.

Dated: New York, New York
January 28, 2020



Courtney Chadwell, Esq.
LEBEDIN KOFMAN, LLP
Attorneys for Plaintiff
ELIJAH GRAY
26 Broadway, 27th Floor
New York, New York 10004
(212) 500-3273
File No.: FA-7244-LK

ATTORNEY'S VERIFICATION

I, the undersigned, am an attorney duly admitted to practice law in the courts of the State of New York, and affirm the following to be true:

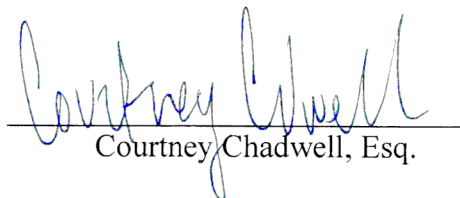
I am a member of Lebedin Kofman LLP, the attorneys of record for Plaintiff.

I have read the foregoing Complaint, and know the allegations of fact stated therein, that the stated allegations of fact are true to my own knowledge except as to those allegations stated to be on information and belief, and as to those matters, I believe them to be true.

The grounds of my belief as to all matters stated to be upon information and belief are conversations with Plaintiff, my review of the documents contained in files maintained by my office in connection with this matter, and any investigation of the relevant facts and circumstances.

The reason I make this verification instead of Plaintiff is that Plaintiff is not presently within the county where Lebedin Kofman LLP maintains its offices.

Dated: New York, New York
January 28, 2020


Courtney Chadwell, Esq.